

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
NATHANIEL GATHRIGHT AND SHANEL SPANN,

Plaintiffs,

-against-

CITY OF NEW YORK, ELENA PELENGARIS, ERIC
DYM AND JOHN OR JANE DOE 1-10,

Defendants.

Index No.:

Purchased:

Plaintiffs designates
Bronx County as the place of trial

The basis of the venue is where the
injury occurred

SUMMONS

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
June 11, 2020

/s/ Samuel C. DePaola

SIM & DEPAOLA, LLP

By: Samuel C. DePaola, Esq.

Attorneys for Plaintiffs

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TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK
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ELENA PELENGARIS and ERIC DYM (NYPD Officers)
Via Police Service Area 7
737 Melrose Avenue
Bronx, New York 10455

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
NATHANIEL GATHRIGHT AND SHANEL SPANN,

Index No.:

Plaintiffs,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, ELENA PELENGARIS, ERIC
DYM AND JOHN OR JANE DOE 1-10,

Defendants.

-----X

Plaintiffs, NATHANIEL GATHRIGHT and SHANEL SPANN, by and through the undersigned attorneys, Sim & DePaola, LLP, for their complaint against the Defendants, CITY OF NEW YORK, ELENA PELENGARIS, ERIC DYM and JOHN OR JANE DOE 1-10, alleges and states as follows:

1. This is a civil rights action, in which Plaintiffs seek relief, vis-à-vis 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, the laws of the State of New York, in addition to the self-executing clauses or implied private causes of action within the New York State Constitution, for the violations of their civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, as well as the Laws and Constitution of the State of New York.
2. The following claims arise from August 22, 2019 incident, in which Defendants, acting under color of state law, unlawfully stopped, questioned, searched, arrested and detained Plaintiffs, Nathaniel Gathright and Shanel Spann ("Plaintiffs") in the vicinity of 721 Tinton Avenue, within the County of Bronx, City and State of New York. Plaintiffs were subsequently transported to PSA7 and later to Bronx County Central booking. As a result, Plaintiffs were

deprived of their liberties and suffered various physical, emotional and psychological injuries.

Plaintiff Nathaniel Gathright was wrongfully detained over the course of twenty-four (24) hours.

Plaintiff Shanel Spann was wrongfully detained over the course of twenty-six (26) hours.

Mr. Gathright was maliciously prosecuted until the unconditional and outright dismissal of all criminal charges on, or about, October 21, 2019, which was a termination of the prosecution in his favor. Ms. Spann was maliciously prosecuted until the unconditional and outright dismissal of all criminal charges on, or about, August 23, 2019, which was a termination of the prosecution in her favor.

3. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

4. Within 90 of the claims herein, Plaintiffs timely served notice of claims, upon the City of New York.

5. Over 30 days have elapsed since the filing of this notice, and this matter has not been settled or otherwise disposed of.

6. Plaintiffs have complied with municipal Defendant's request for an oral examination, pursuant to Section 50-H of the New York General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.

7. This action and associated claims have been timely commenced within one-year-and-ninety-days from the applicable accrual dates.

8. Plaintiffs seek monetary damages (compensatory and punitive) against Defendants, an award of costs and reasonable attorneys' fees, and such other and further relief as this Court may deem just and proper.

PARTIES

9. Plaintiffs, Nathaniel Gathright (“Mr. Gathright”) and Shanel Spann (“Ms. Spann”), belong to the black racial minority and presently reside in Bronx County, within the City and State of New York.

10. Defendant, City of New York (“City”), is a municipal corporation organized under the laws of the State of New York.

11. At all times relevant hereto, Defendant City, acting through the New York City Police Department (“NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants and other supervisory officers or officials, as well as the individually named NYPD Defendants herein.

12. In addition, at all times here relevant, Defendant, City, was responsible for enforcing the rules or regulations of the NYPD, and for ensuring that the NYPD personnel obey the laws and constitutions of the United States and the State of New York.

13. Defendants, ELENA PELENAGARIS (“PELENAGARIS”), Shield No. 26241, and ERIC DYM (“DYM”), Tax Reg. No. 933762, were, at all times here relevant, police officers or lieutenants employed by the NYPD and, as such, was acting in the capacities of agents, servants and employees of the defendant, City of New York. Defendants PELENAGARIS and DYM were, at the times relevant herein, police officers or lieutenants, assigned to Police Service Area 7. Defendants PELENAGARIS and DYM are being sued in their individual and official capacities.

14. At all relevant times, Defendants JOHN OR JANE DOE 1-10 were police officers, lieutenants, detectives, supervisors, policymakers or officials employed by the NYPD, or City of New York. At this time, Plaintiffs do not know the true names or tax registry numbers of Defendants, JOHN OR JANE DOE 1-10, as such knowledge is within the exclusive possession of Defendants.

15. At all relevant times herein, Defendants JOHN OR JANE DOE 1-10 were acting as agents, servants and employees of the City of New York, or the NYPD. Defendants JOHN OR JANE DOE 1-10 are being sued in their individual and official capacities.

16. At all relevant times herein, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City or State of New York.

FACTUAL CHARGES

17. On, or about, August 22, 2019, at approximately 12:30 A.M., in the vicinity of the 721 Tinton Avenue, within the County of Bronx, City and State of New York, plaintiffs were illegally approached by Defendants, including PELENAGARIS and DYM, as plaintiffs were in violation of no law, statute or local ordinance.

18. Defendants, including PELENAGARIS and DYM, prevented plaintiffs from leaving by blocking their paths and by ordering them not to move.

19. Defendants, including PELENAGARIS and DYM, they proceeded to unlawfully question plaintiffs about illegal activity, despite possessing no valid reason to do, as there were no indicia of criminality afoot.

20. Defendants, including PELENAGARIS and DYM, then physically restrained plaintiffs by grabbing each plaintiff about their arms and bodies.

21. Defendants, including PELENAGARIS and DYM, then applied handcuffs to plaintiffs' wrists in an excessively tight fashion, which resulted in substantial pain and physical discomfort to Plaintiffs' wrists and hands.

22. Prior, during and after plaintiffs were handcuffed behind their backs, defendants, , including PELENAGARIS and DYM, punched and kicked plaintiffs all about their bodies, heads, arms, backs and torsos, which caused plaintiffs to sustain substantial physical pain, contusions, lacerations and other bodily injuries.

23. Defendants, including PELENAGARIS and DYM, unlawfully stopped, questioned, searched and arrested Plaintiffs without their consent, a judicially authorized warrant. or any other legal justification.

24. Defendants, including PELENAGARIS and DYM, then fabricated allegations against Mr. Gathright, so that he would be criminally prosecuted, namely that Mr. Gathright swung a closed fist at defendant DYM and that he locked his arms and walked away from defendants in an effort to resist a lawful arrest.

25. Defendants, including PELENAGARIS and DYM, then fabricated allegations against Ms. Spann, so that she would be criminally prosecuted, namely that Ms. Spann tried to prevent defendants PELENAGARIS and DYM from arresting Mr. Gathright by stepping in between defendants and Mr. Gathright and pushing or attempting to push defendants away from Mr. Gathright and herself.

26. Defendants, including PELENAGARIS and DYM then forcibly removed Plaintiffs to the PSA7 precinct by grabbing their persons and shoving them into a police vehicle.

27. Defendants, including PELENAGARIS and DYM, then proceeded to criminally process Plaintiffs, which included fingerprinting, retina scans and various invasive bodily searches.

28. Defendants, including PELENAGARIS and DYM, then subjected Plaintiffs to illegal interrogation tactics by threatening them with a protracted criminal prosecution followed by a lengthy imprisonment, if they did not comply with Defendants' demands by providing them with information or tips relating to serious crimes or criminal suspects.

29. Defendants, including PELENAGARIS and DYM, initiated law enforcement activity against plaintiffs, by approaching, inquiring and stopping plaintiffs, solely because of their perceptions and considerations of plaintiffs' race

30. Defendants, including PELENAGARIS and DYM, stopped and arrested plaintiffs because of their profound racial biases and prejudices against black men and women, such as Mr. Gathright and Ms. Spann, respectively.

31. Defendants, including PELENAGARIS and DYM, proceeded to suppress exculpatory evidence from prosecutors, so that Plaintiffs would be criminally prosecuted, namely by withholding or destroying contact information for civilian eye-witnesses, who observed plaintiffs' arrests and who would provide exculpatory information.

32. Defendants, including PELENAGARIS and DYM, based upon said fabricated observations, falsely informed prosecutors that Plaintiffs had resisted arrest and attempted assault on -duty police officers, despite their full and complete knowledge that Plaintiffs had committed no such crimes or violations of the law.

33. After Plaintiffs' arraignments, they were compelled to return to court multiple times to contest egregiously false criminal charges alleged against him by Defendants, including Defendants, including PELENAGARIS and DYM.

34. Mr. Gathright was eventually vindicated on October 21, 2019, when the criminal charges against him were favorably terminated via an unconditional dismissal.

35. Ms. Spann was eventually vindicated on August 23, 2019, when the criminal charges against her were favorably terminated via an unconditional dismissal.

36. Defendants, including PELENAGARIS and DYM, arrested and caused criminal prosecutions to be initiated against Plaintiffs, because of their racial biases and prejudices, their improper use of custodial arrests to obtain information regarding serious criminal activity, their desires to incur additional overtime compensation, benefits and career favor from the superior officers, to avoid adverse consequences associated with failing to meet NYPD departmental arrest quotas and also to conceal their egregious violations of proper police procedures and gross misconduct, including their fabrications of non-existent observations, evidence and information.

37. Defendants, including PELENAGARIS and DYM, engaged in a conspiracy to falsely arrest and maliciously prosecute Plaintiffs by communicating their plan to arrest plaintiffs, despite the absence of probable cause, via verbally conferring with one another immediately prior to plaintiffs' arrests, and also by planning their fabrication of the aforementioned non-existent evidence and observations, as well as the manner and means by which said fabrications would be forwarded to the District Attorney's Office.

38. Plaintiffs assert that the Defendants, including PELENAGARIS and DYM, who violated Plaintiffs' civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

39. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

40. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculpated via some incontrovertible form of evidence.

41. On March 18, 2018, *The New York Times* published an explosive article, entitled "Promotions, Not Punishments for Officers Accused of Lying," written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the

NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

42. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars."

Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

43. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

44. Other articles include: (i) "Testilying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He

Excelled as a Detective, Until Prosecutors Stopped Believing Him,” by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came From the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

45. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

46. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff Mr. Ortiz’s arrest without probable cause.

47. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

48. Defendants' actions, pursuant to Plaintiffs Mr. Mohan and Mr. Ortiz's ("Plaintiffs") underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiffs' civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

49. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

50. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

51. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring

or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Defendants, PELENAGARIS, DYM and JOHN OR JANE DOES 1-10.

52. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

53. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct

54. The aforementioned acts of Defendants, including PELENAGARIS, DYM and JOHN OR JANE DOES 1-10, directly or proximately resulted in the deprivation or violation of Plaintiffs' civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

55. As a direct or proximate result of said acts, Plaintiffs were caused to suffer the loss of his liberty, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTIONUnlawful Search and Seizure Under
New York State Law

56. The above paragraphs are here incorporated by reference as though fully set forth herein.
57. Defendants subjected Plaintiffs and their properties to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.
58. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their persons and properties.
59. Plaintiffs did not consent to the unreasonable searches and seizures to their persons or properties.
60. The unreasonable searches and seizures to Plaintiffs' persons and properties were not otherwise privileged.
61. Accordingly, Defendants violated Plaintiffs' right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.
62. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
63. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTIONUnlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

64. The above paragraphs are here incorporated by reference as though fully set forth herein.
65. Defendants subjected Plaintiffs and their properties to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

66. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their persons and properties.

67. Plaintiffs did not consent to the unreasonable searches and seizures to their persons or properties.

68. The unreasonable searches and seizures to Plaintiffs' persons and properties were not otherwise privileged.

69. Accordingly, Defendants violated Plaintiffs' rights to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

70. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

71. The above paragraphs are here incorporated by reference as though fully set forth herein.

72. Defendants subjected Plaintiffs to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.

73. Plaintiffs were conscious of their confinement.

74. Plaintiffs were not consent to their confinement.

75. Plaintiffs' arrests and false imprisonment were not otherwise privileged.

76. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

77. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

78. The above paragraphs are here incorporated by reference as though fully set forth herein.

79. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.

80. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiffs was carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.

81. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

82. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

83. The above paragraphs are here incorporated by reference as though fully set forth herein.

84. At all relevant times, Defendants caused Plaintiffs to fear for their physical well-being and safety and placed them in apprehension of immediate harmful and/or offensive touching.

85. Defendants engaged in and subjected Plaintiffs to immediate harmful and/or offensive touching and battered them without their consent or justification.

86. Due to the intentional, willful and unlawful acts of Defendants, Plaintiffs suffered damages.

87. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

88. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

89. The above paragraphs are here incorporated by reference as though fully set forth herein.

90. The Defendants violated Plaintiffs' rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiffs' consent.

91. Defendants engaged in and subjected Plaintiffs to immediate harmful and/or offensive touching and battered them without their consent.

92. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

93. The above paragraphs are here incorporated by reference as though fully set forth herein.

94. Defendants initiated the prosecution against Plaintiffs.

95. Defendants lacked probable cause to believe Plaintiffs were guilty or that the prosecution would succeed.

96. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

97. The prosecutions were terminated in Plaintiffs' favor, when all criminal charges were unconditionally dismissed and sealed.

98. Due to the intentional, willful and unlawful acts of Defendants, Plaintiffs suffered significant damages.

99. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

100. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

101. The above paragraphs are here incorporated by reference as though fully set forth herein.

102. Defendants initiated the prosecution against Plaintiffs.

103. Defendants lacked probable cause to believe Plaintiffs were guilty or that the prosecution would succeed.

104. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

105. The prosecutions were terminated in Plaintiffs' favor, when all criminal charges were unconditionally dismissed and sealed.

106. Defendants violated Plaintiffs' Fourth and Fourteenth Amendment rights by causing Plaintiffs to remain unlawfully incarcerated after their arraignment and trial by jury.

107. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

108. The above paragraphs are here incorporated by reference as though fully set forth herein.

109. Defendants arrested, detained and caused criminal prosecutions to be initiated against Plaintiffs to compel the compliance or forbearance of some act.

110. Defendants had no excuse or justification to forcibly detain or initiate prosecutions against Plaintiffs, especially with the absence of any cognizable probable cause.

111. Defendants intended to inflict substantial harm upon Plaintiffs.

112. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecutions.

113. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

114. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

115. The above paragraphs are here incorporated by reference as though fully set forth herein.

116. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiffs to compel the compliance or forbearance of some act.

117. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.

118. Defendants intended to inflict substantial harm upon Plaintiffs.

119. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecutions.

120. Defendants' actions deprived Plaintiffs of their constitutional rights to free from illegal searches and seizures and to not be deprived of their liberties without the due process of law in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

121. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Denial of Due Process or Right to Fair Trial Under
New York State Law

122. The above paragraphs are here incorporated by reference as though fully set forth herein.

123. Defendants fabricated false evidence to be used against Plaintiffs that was likely to influence a jury's decision.

124. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

125. Defendants' actions resulted in post-arraignment restrictions and deprivations upon Plaintiffs' liberties and freedom of movement.

126. Accordingly, Defendants violated Plaintiffs' rights to be from liberty deprivations without the due process of law and to be affording a fair trial, pursuant to Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

127. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

128. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

129. The above paragraphs are here incorporated by reference as though fully set forth herein.

130. Defendants fabricated false evidence to be used against Plaintiffs that was likely to influence a jury's decision.

131. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

132. Defendants' actions resulted in post-arraignment restrictions and deprivations upon Plaintiffs' liberties and freedom of movement.

133. Accordingly, Defendants violated Plaintiffs' right to fair trial, pursuant to the Fifth, Sixth and Fourteenth Amendments to United States Constitution.

134. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Biased Based Profiling under
New York City Law

135. The above paragraphs are here incorporated by reference as though fully set forth herein.

136. Defendants impermissibly relied upon Plaintiffs' actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement action against Plaintiffs, rather than Plaintiffs' behavior or other information or circumstances that would link Plaintiffs to suspected unlawful activity.

137. Accordingly, defendants violated plaintiffs' rights, pursuant to the Administrative Code of the City of New York, Section 14-151

138. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

139. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
New York State law

140. The above paragraphs are here incorporated by reference as though fully set forth herein.

141. Plaintiffs, as black individuals, are members of a racial minority and protected class.

142. Defendants discriminated against Plaintiffs on the basis of their race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation

143. Defendants also engaged in the selective treatment of Plaintiffs, in comparison to others similarly situated.

144. Defendants' discriminatory treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of their Constitutional rights, or a malicious or bad faith intent to injure Plaintiffs.

145. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

146. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiffs.

147. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

148. Accordingly, defendants violated plaintiffs' rights, pursuant to Article I, Section 11, of the New York State Constitution, Article VII, Section 79-N, of the New York Civil Rights Law and Section 296, Paragraph 13, of the New York Human Rights Law.

149. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

150. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 and 1983 Against Individual Defendants

151. The above paragraphs are here incorporated by reference as though fully set forth herein.
152. Plaintiffs, as black individuals, belong to a racial minority and protected class.
153. Defendants discriminated against Plaintiffs on the basis of their race, color or ethnicity
154. Defendants engaged in the selective treatment of Plaintiffs in comparison to others similarly situated.
155. Defendants' selective treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of their Constitutional rights, or malicious or bad faith intent to injure Plaintiffs.
156. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.
157. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiffs.
158. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.
159. Accordingly, defendants violated plaintiffs' rights, under the Fourteenth Amendment.
160. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1983, 1985 and 1986 Against Individual Defendants

161. The above paragraphs are here incorporated by reference as though fully set forth herein.

162. Defendants engaged in a conspiracy against Plaintiffs to deprive Plaintiffs of their rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of their liberties or properties without due process of law, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.

163. Defendants committed overt acts in furtherance of their conspiracy against Plaintiffs.

164. As a result, Plaintiffs sustained injuries to their persons, was deprived of their liberties or was deprived of rights or privileges of citizens of the United States.

165. Defendants' conspiracy was motivated by a desire to deprive Plaintiffs of their civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

166. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiffs' civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

167. Accordingly, Defendants violated Plaintiffs' rights, pursuant to the Fourth, Fifth, Sixth and/or Fourteenth Amendments to the United States Constitution.

168. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

169. The above paragraphs are here incorporated by reference as though fully set forth herein.

170. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

171. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

172. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

173. The above paragraphs are here incorporated by reference as though fully set forth herein.

174. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

175. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

176. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

177. The above paragraphs are here incorporated by reference as though fully set forth.

178. Defendant City owed a duty of care to Plaintiffs to adequately hire, train, retain and supervise its employee Defendants.

179. Defendant City breached those duties of care.

180. Defendant City placed Defendants in a position where they could inflict foreseeable harm.

181. Defendant City knew or should have known of its employee Defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

182. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee Defendants that would have prevented the aforesaid injuries to Plaintiffs.

183. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTIETH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

184. The above paragraphs are here incorporated by reference as though fully set forth.

185. Defendant City maintained a policy or custom that caused Plaintiffs to be deprived of their civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiffs, to such violative behavior.

186. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

187. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate

indifference toward the rights of those who may come into contact with Defendant City's employees.

188. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiffs' Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City's employees.

189. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

190. Defendant City's conduct caused the violation of Plaintiffs' civil rights enumerated within the Constitution of the United States.

191. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiffs respectfully request judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) On the Twentieth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- u) Awarding Plaintiffs punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- v) Awarding Plaintiffs reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988; the New York Civil and Human Rights laws, as well as the Administrative Code of New York City;

Together with the costs and disbursements of this action.

JURY DEMAND

Plaintiffs demand a trial by jury.

Dated: Bayside, New York
June 11, 2020

/s/ Samuel C. DePaola
Samuel C. DePaola, Esq.
SIM & DEPAOLA, LLP

Attorneys for Plaintiffs
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ATTORNEY VERIFICATION

I, Samuel C. DePaola, an attorney admitted to practice in the courts of New York State, state that I am a partner with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs, is because Plaintiffs reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
June 11, 2020

/s/ Samuel C. DePaola
Samuel C. DePaola, Esq.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

NATHANIEL GATHRIGHT AND SHANEL SPANN,

Plaintiffs,

-against-

CITY OF NEW YORK, ELENA PELENGARIS, ERIC DYM AND JOHN OR JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

By: Samuel C. DePaola, Esq.

Attorneys for Plaintiffs

42-40 Bell Boulevard

Suite 201

Bayside, New York 11361

Tel. (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for